

## 23TRCV04263 23TRCV04263

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-09-17

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Case Number: 23TRCV04263 Hearing Date: September 17, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

COMERICA

BANK,

Plaintiff,

Case No.:

23TRCV04263

v.

[Tentative]

Granted

PITT

STOP EL SEGUNDO, INC., a Delaware corporation; VICTOR M. HOPPER, an individual; and DOES 1-100, inclusive

Defendants.

Hearing

Date: September 17, 2026

Moving Parties: Plaintiff Comerica Bank

Responding

Party: N/A

HEARING: Motion for Summary Adjudication

The Court considered the moving papers.

RULING

The Court grants the Motion for Summary Adjudication.

BACKGROUND

On December 21, 2023, Plaintiff Comerica Bank filed the Complaint against Pitt Stop El Segundo Inc. and Victor M. Hopper, alleging causes of action for breach of promissory note, foreclosure of security agreement and possession of collateral, breach of guaranty, money lent, account stated, and unjust enrichment.

On March 30, 2026, Plaintiff filed the Motion for Summary Adjudication.

No opposition has been filed.

REQUEST FOR JUDICIAL NOTICE

The

Court may take judicial notice of records of (1) any court of this state or (2) any court of record of the United States or of any state of the United States. (Evid. Code § 452 subd. (d).) The Court may also take judicial notice of "Official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States." (Evid. Code § 452 subd. (c).) Last, the Court may take judicial notice

of “facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.” (Evid. Code § 452 subd. (h).)

Plaintiff requests that the Court take judicial notice of the Voluntary Petition for Individuals Filing for Bankruptcy filed with the United States Bankruptcy Court, Eastern District, Case Number 23-24382 on December 7, 2023, the Order Dismissing Chapter 13 Case filed with the United States Bankruptcy Court, Eastern District, Case Number 23-24382 on November 18, 2024, the Order Closing Case Where Case Has Been Dismissed filed with the United States Bankruptcy Court, Eastern District, Case Number 23-24382 on March 3, 2025, and the Federal Reserve System, FRB Order No. 2026-02 dated January 13, 2026 regarding

merger of Fifth Third Bank, National Association and Comerica Bank.

The Court grants these requests pursuant to Evidence Code section 452, subdivisions (d) and (e).

#### LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437 subdivision (c) “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal. App. 3d 367, 381-382.)

As the moving party, Plaintiff bears the burden of persuasion that there is no triable issue of material fact and that it is entitled to judgment as a matter of law. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A plaintiff meets its initial burden of showing that there is no defense to a cause of action by proving each element of the cause of action entitling it to judgment. (Code Civ. Proc., § 437c, subd. (p)(1).) To carry that burden, Plaintiff must present evidence that would require a reasonable trier of fact to find each underlying material fact more likely than not. (Aguilar, supra, 25 Cal.4th 826, 851-852.)

Once Plaintiff makes this prima facie showing, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (Code Civ. Proc., § 437c, subd. (p)(1); Aguilar, supra, 25 Cal.4th 826, 850.) The defendant may not rely on the allegations or denials of its pleadings but must set forth specific facts showing that a triable issue of material fact exists. (Code Civ. Proc., § 437c, subd. (p)(1).) A triable issue of material fact exists only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the opposing party in accordance with the applicable standard of proof. (Aguilar, supra, 25 Cal.4th 826, 850.) In assessing whether that burden is met, the court considers all of the evidence and reasonable inferences in the light most favorable to the opposing party and may not weigh the evidence as though it were the trier of fact. (Id. at 856.)

## DISCUSSION

### Plaintiff

moves for summary adjudication on the first cause of action for breach of promissory note as to Defendant Pitt Stop El Segundo, the third cause of action for breach of guaranty as to Defendant Hopper, the fourth cause of action for breach of written promissory note as to Defendant Pitt Stop El Segundo, and the sixth cause of action for breach of guaranty as to Defendant Hopper.

### The elements of

breach of contract are (1) the existence of a contract; (2) the plaintiff's performance or a valid excuse for nonperformance; (3) the defendant's breach or anticipatory breach of the contract; and (4) resulting damage to the plaintiff. (Wall Street Network, Ltd. v. N. Y. Times Co. (2008) 164 Cal.App.4th 1171, 1178.)

Plaintiff

Comerica Bank contends that it has established each element of its four contract causes of action, namely the existence of a contract, its own performance, breach by Defendant Pitt Stop and Defendant Hopper, and resulting damages. (See *Reichert v. General Ins. Co.* (1968) 68 Cal.2d 822, 830.) Plaintiff argues that four written contracts exist, being the Note and Note #2 with Defendant Pitt Stop and the Guaranty and Guaranty #2 with Defendant Hopper, and that Defendant Pitt Stop and Defendant Hopper do not dispute entering into them or receiving the funds Plaintiff Comerica Bank provided as the lender. Plaintiff Comerica Bank further argues that Defendant Pitt Stop breached the Note and Note #2 by failing to make the monthly payments due beginning on or about August 14, 2023 and July 3, 2023, and never cured the default.

Plaintiff Comerica Bank contends that

it has sustained damages of \$237,694.44 under the Note, with interest at the default rate of Prime plus 4.50% and late charges of \$111.92, and \$108,955.88 under Note #2, with interest at the default rate of 10.2% and late charges of \$358.74, rates that Defendant Pitt Stop and Defendant Hopper agree apply, plus recoverable attorneys' fees and costs. Plaintiff Comerica Bank argues that in their bankruptcy filings and responses to Plaintiff Comerica Bank's requests for admission, Defendant Pitt Stop and Defendant Hopper each admit entering into the agreements, receiving the money, and being bound by their terms, so that all elements of the First, Third, Fourth, and Sixth Causes of Action are supported by uncontroverted evidence.

Plaintiff Comerica Bank further

argues that once it establishes the elements of its causes of action, the burden shifts to Defendant Pitt Stop and Defendant Hopper to set forth specific facts showing a triable issue of material fact, which they may not do by resting on the allegations or denials of their pleadings. (Code Civ. Proc., § 437c, subd. (p)(1).) Plaintiff Comerica Bank contends that Defendant Pitt Stop and Defendant Hopper have offered no evidence to dispute their liability and that their proffered defense, that the loans were entered into at the request of Defendant Hopper's brother, is not viable and does not contradict that the loans remain in default and the amounts sought are due.

As a preliminary note, Plaintiff's

Separate Statement of Undisputed Material Fact is misnumbered. Consequently, the Court will cite it as if it were numbered 1 through X in a sequential

order.

Here, Plaintiff has shown that it entered into two agreements with both Defendants Hopper and Pitt Stop El Segundo. (UMF 1, 12, 24, and 25.) Plaintiff has also shown that it performed and that Defendants breached the contract by failing to make payments. (UMF 2-11, 14-17, 25-28, and 37-39.) Last, Plaintiff has shown quantifiable damages through evidence. (UMF 6, 18, 29, and 40.) Consequently, Plaintiff has presented evidence showing that there is no defense as to each element of the causes of action for breach of promissory note and breach of guaranty. Furthermore, as Defendants have not filed an opposition, they have not raised any triable issues of material fact.

Therefore, the Court grants the Motion for Summary Adjudication.